

Mool Chand @ Mantri v. State of U.P.

Allahabad High Court · Division Bench · 24 October 2018 · Writ-C No. 35021 of 2018 · **Writ dismissed; petitioner left to object before the Executive Engineer under clause 6.5.**

HEADNOTE

A consumer who has not first objected to the Executive Engineer cannot obtain writ quashing of an electricity recovery certificate. The Allahabad High Court dismissed the petition and relegated the petitioner to paragraph 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mool Chand, also known as Mantri, petitioned the Allahabad High Court to quash a recovery certificate dated 20 September 2018 demanding Rs 2,00,025 with interest as recovery charges. He asserted that no electricity dues stood against him: Purvanchal Power Distribution Nigam Ltd. had sanctioned a 3 kW connection on 3 February 2018 and he was paying regular bills. The Executive Engineer of the distribution company was impleaded as respondent no. 4. It was admitted that he had not approached that officer before filing the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where recovery of electricity charges is sought, the consumer's remedy is to file an objection before the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005; a writ to quash the recovery certificate will not be entertained if that officer has not even been approached, though liberty remains to file the statutory objection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE OF RS 2,00,025 WAS DUE OR ELECTRICITY ARREARS EXISTED

The Court did not examine the petitioner's claim of nil dues or the correctness of the demand. ¶ 1